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ACT No. XVIII OF 1872.

PASSED BY THE GOVERNOR GENERAL OF INDIA IN COUNCIL.

(Received the assent of the Governor General on the 29th August 1872).

An Act to amend the Indian Evidence Act, 1872.

WHEREAS it is expedient to amend the Indian Evidence Act, 1872; It is hereby enacted as follows:— Preamble.

1. This Act may be called "The Indian Evidence Act Amendment Act"; Short title.

And it shall come into force on the passing thereof. Commence-
ment.

2. In section thirty-two of the Indian Evidence Act, 1872, clauses five and six, after the word "relationship," the words "by blood, marriage or adoption" shall be inserted. Amendment
of Act I of
1872, section
32, clauses 5
and 6.

3. In section forty-one of the same Act, lines seventeen, twenty and twenty-three, after the word "judgment," the words "order or decree" shall be inserted. Amendment
of section 41.

4. In section forty-five of the same Act, line five, after the word "art," the words "or in questions as to identity of handwriting" shall be inserted. Amendment
of section 45.

5. In section fifty-seven of the same Act, paragraph (13), after the word "road," the words "on land or at sea" shall be inserted. Amendment
of section 57.

6. In section sixty-six of the same Act, line five, after the word "is," the words "or to his attorney or pleader" shall be inserted. Amendment
of section 66.

7. In section ninety-one of the same Act, Exception 2, for the words "under the Indian Succession Act," the words "admitted to probate in British India" shall be substituted. Amendment
of section 91.

8. In

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Evidence Act Amendment. [ACT XVIII, 1872]

Amendment
of section 92.

8. In section ninety-two of the Indian Evidence Act, 1872, proviso (1), for the words "want of failure," the words "want or failure" shall be substituted.

Amendment
of section
108.

9. In section one hundred and eight of the same Act, line one, for the word "When," the words "Provided that when" shall be substituted; and, in the last line, for the word "on," the words "shifted to" shall be substituted.

Amendment
of sections
126 and 128.

10. In section one hundred and twenty-six of the same Act, line twenty-two, and in section one hundred and twenty-eight of the same Act, line six, after the word "barrister," the word "pleader" shall be inserted.

In section one hundred and twenty-six of the same Act, line fifteen, for the word "criminal," the word "illegal" shall be substituted.

Amendment
of section
155.

11. In section one hundred and fifty-five of the same Act, paragraph (2), for the word "had," the word "accepted" shall be substituted.

Saving of Act
XV of 1852,
section 12.

12. Nothing in the Indian Evidence Act, 1872, shall be deemed to affect Act No. XV of 1852 (*to amend the Law of Evidence*), section twelve.